Certificate in Local Government Studies
(Accredited by NUI)

LESSON 6
Planning and Development

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Learning Objectives

When you have studied this lesson, you should be able to:

- give a detailed account of the planning and development role of local authorities
- understand the Development Plan purpose and process.
- explain the procedure for strategic development
- describe the role of An Coimisiún Pleanála / An Bord Pleanála
- outline the process for EIA/SEA, land acquisition.

6.0 INTRODUCTION AND OVERVIEW

Proper planning and development of cities, towns and the countryside is of critical importance to the quality of life we enjoy today and for future generations. This is particularly relevant in the context of rapid economic growth. Areas that for decades had remained relatively static experienced severe developmental pressure during periods of economic growth, and Ireland will continue to pay the social and economic cost as a consequence of decisions taken during these periods.

The planning process endeavours to achieve a balance between the common good or the general community interest on the one hand, and the interests of particular individuals/ communities on the other. The planning process attempts to achieve this balance through the adoption of statutory development or land-use plans by elected members, representative of local communities, and the adjudication of individual development proposals by qualified planners and officials working in the context of the statutory plans. Planning and development issues are also of significance to the location, promotion and timing of investment, the creation of employment opportunities, population distribution, climate change considerations, protection of the environment and other factors shaping our lives.

Project Ireland 2040: National Planning Framework (NPF) was published in February 2018. The NPF was introduced alongside the National Development Plan to better align the national investment and planning strategies. NPF sets out a strategic planning framework to cater for the scale of anticipated development in Ireland for the period up to 2040. The objective is to deliver an effective strategic framework for proper planning and sustainable development, longer-term planning and help achieve development aims.

With a projected population increase of 1 million people by 2040, the strategy will direct investment into areas such as: national roads, public transport, airports and ports, climate action, water infrastructure and housing. A range of national strategic outcomes are expected, including: compact growth, strengthened rural economies, low carbon and a resilient economy.

The problems associated with achieving more balanced regional development and sustainability remain unresolved. For example, while the rapid growth and development in the Greater Dublin Area creates issues of sustainability, other regions are experiencing sustainability issues of a different nature, such as the viability of rural communities and smaller town and village centres.

There are significant policy issues involved in the delivering the planning service. Planning is a challenging exercise and it is by no means an exact science. Keep this in mind when studying this lesson.

Planning is concerned not only with the day-to-day operation of the regulatory role (development management and planning permissions) but also with the developmental role of planning (forward planning and development plans). This lesson examines both forward planning and development management. It focuses on the practical application of the planning code, i.e. the planning application and appeal processes.

Planning authorities are the County, City and City & County Councils. An Coimisiún Pleanála (known as An Bord Pleanála before 2024) deals with appeals of decisions made by a local authority, and it too can be classed as a planning authority.

6.1 DEVELOPMENT OF THE PLANNING SYSTEM

The Local Government (Planning and Development) Act, 1963 created a statutory duty to prepare a development plan, and permission is now required for every form of development except "exempted development". Appeals on planning decisions could be made to the Minister for Local Government, and local authorities had powers of enforcement.

The 1963 Act had serious defects. In dealing with appeals, the Minister was often subjected to political pressures, resulting in less than optimum planning decisions. The enforcement machinery, while in theory adequate, often proved inoperable in practice. Moves to improve matters culminated in the Local Government (Planning and Development) Act, 1976, which created An Bord Pleanála, the Planning Appeals Board (now known as An Coimisiún Pleanála). The Act also improved and tightened up enforcement and other aspects of the planning code.

Further changes to improve the planning code, sometimes emanating from the findings in court cases and the provisions of European Directives, meant the planning code was contained in a plethora of Acts, Regulations and associated legislation. This made it difficult to follow. By 1999, the planning code was contained in nine Acts (1963–1999), five sets of European Communities (Environmental Impact Assessment) Regulations (1989–1999) and a number of Planning and Development Regulations (1994–1999). A major legislative reform was necessary.

This reform took the form of the Planning and Development Act, 2000. The 2000 Act was itself significantly amended by the Planning and Development (Amendment) Act 2010.

The main objectives of the 2010 Act were to provide for a closer alignment of national and regional planning frameworks with Development Plans and Local Area Plans. In addition, it clarified key obligations of local authorities under the Birds and Habitats Directives, strengthened the planning enforcement powers of local authorities, as well as provisions on the management of planning appeals.

Further legislative change came in the form of the Planning and Development Act 2024. This Act consolidates planning legislation, which had evolved significantly since the previous framework legislation on planning was adopted in 2000. Apart from consolidating earlier legislation, amongst other reforms, this legislation also extends the timeframe for local development plans from six to ten years, streamlines the judicial review process, and provides for a series of organisational and governance changes to An Bord Pleanála (renamed under the Act as An Coimisiún Pleanála).

6.1.1 Planning Policy Statement

The Government issued a Planning Policy Statement in 2015, where it emphasised the importance of "a forward-looking, visionary and dynamic planning process". Such a process will ensure that "the right development takes place in the right locations and at the right time, providing the social, economic and physical infrastructure necessary to meet the needs of our people in a way that protects the many qualities of our natural and built environment".

As part of this policy statement, the Government set out 10 key principles that can guide the implementation of the common good and proper planning and development of both urban and rural areas.

"1. Planning must be **plan-led and evidence based** so that at the appropriate level, from the National Spatial Strategy, Regional Spatial and Economic Strategies, City and County Development Plans and Local Area Plans, the Government, local authorities and local communities, work together to set out a cohesive vision for the future of our country.
2. Planning must proactively **drive and support sustainable development**, integrating consideration of its economic, social and environmental aspects at the earliest stage to deliver the homes, business and employment space, infrastructure and thriving urban and rural locations in an economically viable manner that will sustain recovery and our future prosperity.
3. Planning is about **creating communities** and further developing existing communities in a sustainable manner by securing high quality urban design through the design, delivery and co-ordination of new development, providing a good quality of life for all existing and future users of land and buildings.
4. Planning must support the **transition to a low carbon future** and adapt to a changing climate taking full account of flood risk and facilitating, as appropriate, the use of renewable resources, particularly the development of alternative indigenous energy resources.
5. Planning must ensure that development facilitates and **encourages greater use of public transport** as well as making walking and cycling more attractive for people in support of active and healthy lifestyles by focusing development, whenever possible, at locations with more sustainable travel options.
6. Planning will **encourage the most efficient and effective use of previously developed (brownfield) land** over the use of greenfield land to ensure the most efficient use of existing infrastructure, enhancing and strengthening the continued vitality of existing communities through regeneration.
7. Planning will **enhance a sense of place** within and between cities, towns and villages and rural areas.
8. Planning will **conserve and enhance the rich qualities of natural and cultural heritage** of Ireland in a manner appropriate to their significance.
9. Planning will **support the protection and enhancement of environmental quality**.
10. Above all, planning will be **conducted in a manner that affords a high level of confidence** in the openness, fairness, professionalism and efficiency of the process, where people have the opportunity to participate at both the strategic plan making and individual planning application level with decisions always being taken in the interests of the common good and in a timely and informed fashion and where people can have confidence that appropriate enforcement action will be taken where legal requirements are not upheld."

Source: Planning Policy Statement, Department of Environment, Community and Local Government, 2015

6.2 THE DEVELOPMENT PLAN

6.2.1 Introduction

The Development Plan is a policy document that sets out the overall planning policies and objectives of the local authority. The making of a Plan is a ***reserved function*** of the elected members. The 2000 Act (Section 9) provided that a planning authority must make a Development Plan every six years. The 2024 Act provides that the lifespan of the Development Plan would extend from six to ten years (with a review of the performance of the plan by the local council after five years to make any amendments needed). Development Plans set out an overall approach for the planning and sustainable development of a local authority area. The Development Plan includes a written statement and a plan, or plans, presenting a series of development objectives for the area. The Plan then forms a framework against which all day-to-day planning decisions have to be taken.

The development plan forms part of a hierarchy of land use and spatial plans, (see diagram on next page), including the National Planning Framework and Regional Spatial and Economic Strategies. The development plan must also be informed by a range of other plans and strategies of national government and other public agencies in general.

In the process of preparing, making and varying a Development Plan, the chief executive`s report must clearly indicate the extent to which the draft plan complies with the National Planning Framework and Regional Spatial and Economic Strategies.

The policies and objectives set out in the development plan are implemented through the ***executive function*** of planning which relates to the day-to-day planning application process. The chief executive (or the person delegated by the chief executive to do so) makes the decision to refuse or grant planning permission for individual developments. However, the executive function of making decisions on individual planning applications must be undertaken within the overall context of the planning and sustainable development policy adopted by the elected members as set out in the Development Plan.

6.2.2 Contents and Context of a Development Plan

As well as providing for the zoning of land for particularly purposes (i.e. residential, commercial, industrial, agricultural, recreational, as open space or otherwise, or a mixture of those uses), section 43 of the 2024 Act provides that development plans include an integrated strategy for proper planning and sustainable development of the area, a settlement strategy for the area, a record of protected structures, and how national and regional planning frameworks and national policy frameworks on transport and climate change are reflected in the plan. Furthermore, Part 3, Chapter 5 of the 2024 Act also provides that development plans must also include a series of thematic strategies related to:

- Sustainable development and regeneration
- Economic development
- Housing development
- Creation, improvement and preservation of sustainable places and communities
- Environment and climate change
- Conservation, protection, management and improvement of natural and built heritage
- Objectives for management of areas, uses, and structures in a development management statement (such as provisions on density, height, parking provisions and open spaces)

Given the increased emphasis placed on climate action, the 2010 Act had provided that development plans must also contain mandatory objectives for the promotion of sustainable settlement and transportation strategies in urban and rural areas, including appropriate measures to reduce energy demand and greenhouse gas emissions. In the context of planning for amenities, planning authorities may designate areas of special amenity and landscape conservation areas.

When preparing its Development Plan, a local authority must have regard to the development plans of adjoining local authorities and co-ordinate the objectives in the development plan with the objectives in the plans of those authorities, as well as being consistent with regional and national plans and central government policies.

6.2.3 Making a Development Plan

A draft plan is prepared and a preliminary public notice and consultation phase undertaken. The chief executive must make a report and recommendation on the policies to be included in the Draft Plan (this also deals with each of the submissions made). The members may then direct the chief executive regarding the preparation of the draft plan. Following receipt of such direction, the chief executive must prepare a draft development plan and submit it to the members within 12 weeks. The chief executive's document is only deemed to be a draft development plan after consideration by the members.

Copies of the draft plan, together with a copy of the public notice, must be forwarded to prescribed bodies, and public notice must be given in at least one newspaper circulating in the local area. The draft plan must be available for inspection for a minimum period of 10 weeks. Written submissions or observations can be made within this period and will be taken into consideration before the making of the plan.

Notice must also be given to each owner or occupier of a proposed protected structure in relation to the addition or deletion of the structure from the list of protected structures included in the draft (see also under Architectural Heritage). Not later than 22 weeks after the giving of the public notice, the chief executive must prepare and submit a report to the elected members that lists all the persons or bodies who made submissions, summarises the issues raised and gives the response of the chief executive to each. The chief executive's response must also take into account any relevant policy directions from the Minister and the proper planning and sustainable development of the area.

The elected members of the council must consider the draft plan as well as the chief executive's report, and can decide by resolution, to either accept or amend the draft and formally make the development plan.

If any proposed amendment of the draft is considered to be a material alteration of the draft, public notice must be given, and a further period of public display and a period for submissions on the amendment must be given. The minimum period is not less than four weeks. The chief

executive is again obliged to submit a report outlining the submissions and issues raised and give his/her recommendation thereon.

On consideration of the amendments and the chief executive's report, the members may by resolution make the development plan with or without the amendment.

Once the development plan is made, public notice to this effect is given and a copy of the plan is forwarded to the Minister, the adjoining local authorities, and other prescribed bodies. The development plan comes into effect four weeks from the day that it is made.

6.2.4 Core Strategy

The 2010 Act had introduced additional provisions in relation to the development plan. The Act introduced a requirement for a *core strategy* in development plans which detail how both the development plan and the housing strategy of the local authority are consistent with regional and national frameworks on spatial planning. The location and phasing of proposed development must be illustrated along with growth scenarios, details of proposed transport plans and retail development, as well as proposals for development in rural areas.

The aim of the core strategy is to articulate a medium to longer term strategy for the spatial development of the county or city, which demonstrates that the development plan and its objectives align with national and regional objectives.

A written statement, a core strategy map and core strategy table are required. The written statement must include a core strategy that shows that the development objectives outlined in the plan are consistent, as far as practicable, with national and regional development objectives set out in the National Planning Framework and Regional Spatial and Economic Strategies (RSESs).

The 2010 Act set out that the core strategy is required to:

- Provide relevant information to show that the development plan and Housing Strategy are *consistent* with national and regional frameworks and strategies on spatial planning.
- Take account of policies of the Minister in relation to national and regional population targets.
- Provide details of the number of hectares of existing zoned residential lands or existing lands zoned for a mixture of residential and other uses.
- Provide details of the proposed number of housing units that can be accommodated on existing zoned lands.
- Provide details of the number of hectares of residential lands of proposed lands zoned for a mixture of residential or other uses proposed for zoning.
- Provide details of the number of housing units that can be accommodated on the proposed zoned lands, stating the density assumptions.

- Need to show how the level of excess lands between existing and proposed zonings will be addressed: Phasing/Rezone for alternative use/Dezone.
- Show that in setting out objectives regarding retail development that the Planning Authority has had regard to any guidelines issued by the Minister under Section 28.
- Set out a settlement hierarchy (this a rank given by the local authority to a town in the area of its development plan with a population in excess of 1,500 according to the last census).
- Provide details of government policies or objectives in relation to national and regional population targets that apply to both towns in the hierarchy, and areas not included in the hierarchy.
- Furnish details of relevant roads (primary/secondary/regional and local roads).
- Where appropriate, consider rural areas in respect of which planning guidelines relating to sustainable rural housing apply.
- Ensure that housing strategy is informed by the core strategy regarding population and housing land requirements.

6.2.5 Variation of the Development Plan

A development plan is not fixed but must change as circumstances evolve. It may be desirable to subsequently vary the adopted development plan in relation to zoning of land or stated objectives. Where a variation is proposed, the Council is obliged to give public notice to this effect, to state the exact variation proposed, and to allow for public submissions (as was the case in making the plan in the first case). Following examination of the submissions, it is a reserved function of the members to vary the plan.

6.2.6 Material Contravention of the Development Plan

In a case in which a proposed development would contravene materially the development plan, a local authority may decide to grant permission provided that the following requirements are complied with before the decision is made:

- Notice of the intention to consider deciding to grant the permission must be published in at least one daily newspaper circulating in its area and the notice must specifically state which objective of the development plan would be materially contravened by granting this permission.
- Copies of the notice must be given to the applicant and to any person who has made a submission in writing in relation to the application.
- All submissions validly made are considered.
- A Resolution is passed requiring that a decision to grant permission be made.
- It is necessary, for the passing of such a resolution, that the number of members voting in favour of the resolution is not less than three-quarters of the total number (rounded down to the next whole number) of the members of the local authority.

6.2.7 Duty to Implement

Each local authority has a duty to take such steps within its powers as may be necessary for securing the objectives of the development plan. The principal means available to the local authorities of securing the objectives in the development plan are by the effective and impartial operation of the planning permission process established in the Act.

6.2.8 National Statements, Directives and Guidelines

The Minister for Housing, Planning and Local Government can issue national planning statements, guidelines and policy directives to planning authorities. Planning authorities *must comply* with any national planning statements and policy directives in the performance of their functions. The limits imposed on retail shopping development are an example of this. The Minister can also issue guidelines and guidance to planning authorities, and planning authorities *must have regard* to those guidelines in the performance of their functions.

Development Plan Guidelines

Development Plan Guidelines for Planning Authorities issued by the Minister (for example those issued in 2022) require plans to be strategic, a catalyst for positive change and progress, anticipative of future needs, protective of the environment and heritage, consistent with other plans and policies, and cognisant of diverse community needs. Local authorities and An Coimisiún Pleanála must have regard to the provisions of any such guidelines in the exercise of their planning functions.

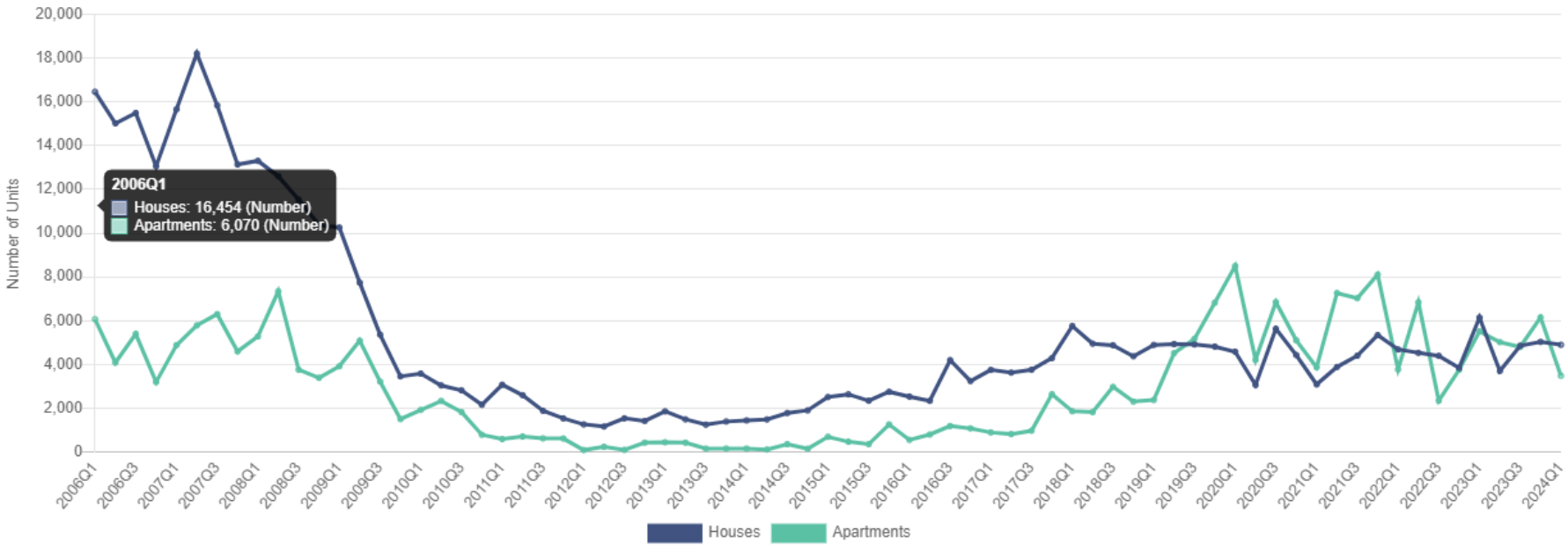
Regional Assemblies can, following consultation with the constituent local authorities or on the direction of the Minister, make regional spatial and economic strategies (RSESs) that accord with the principles of proper planning and sustainable development. These must complement the National Planning Framework and can cover areas that include the location of industrial development, transportation, waste-disposal and other major infrastructural developments. RSESs put in place the hierarchy of plans ranging from the National Planning Framework at national level, to RSESs at regional level and development plans and local area plans at local level (see previous diagram).

6.3 PLANNING PERMISSION

6.3.1 Introduction

The development management process, exercised through the planning application procedure, takes place in the context of the development plans, national and regional policies and specific local requirements. There is a clear link between the planning and development process and other activities of local authorities such as roads construction, recreation and amenity facilities and the all-important aspect of ensuring social inclusion. You should bear in mind this cross-linkage between local authority services and with external agencies, such as water services, tourism, industrial development, etc. The scale of planning permission process can be gauged from the chart below.

Number of units granted planning permission, 2006-2024



Source: CSO

6.3.2 Planning Permission

Planning permission is required:

- In respect of any development of land that is not considered exempted development.
- In the case of development that is unauthorised, for the retention of that unauthorised development.

Development cannot be carried out where permission is required, except where development occurs in accordance with a permission granted.

Development is defined under law as *'the carrying out of works on, in, or under land (including maritime areas) … or the making of any material change in the use of land or any structure on land'* (section 2 of 2024 Act). Certain developments are exempted by virtue of Planning Regulations, such as certain agricultural works, minor construction works, extensions to dwellings within specified limits.

Guidelines on Development Management and the planning application process have been published. The Guidelines outline steps involved in dealing with the planning application process, from pre-application consultation through validating a planning application, processing a planning application, deciding a planning application, determining planning conditions, and issues around planning enforcement and ensuring planning decisions are adhered to.

An applicant may apply for the following types of planning applications:

(a) Outline: An application seeking a decision "in principle" to the proposed development. The applicant does not have to supply detailed plans. Outline permission does not authorise commencement of the development.

(b) Permission Consequent to Outline Permission: Can only be sought where an Outline Permission was previously granted and is still effective, i.e. it must be made within three years of the grant of Outline Permission.

(c) Permission: An application for a specific type of development, often referred to as full permission. The applicant must supply detailed plans and, when permission is obtained, the work can proceed.

(d) Permission for Retention: This involves the examination of a grant of planning permission where works have already been carried out without permission. Higher fees apply.

Where an application is made to a local authority for permission for the development of land, and all requirements of the regulations are complied with, the authority may decide to grant the permission, subject to or without conditions, or to refuse it. This decision is an *executive function* of the chief executive. The chief executive must have regard to the

development plan, the adoption of which is a reserved function. In this way, the members adopt policy and the chief executive implements that policy.

In making his/her decision in relation to an application, the legislation provides that the chief executive must consider the proper planning and sustainable development of the area, with regard being had to amongst other things the policies of the development plan and the National Planning Framework (section 86 of 2024 Act). Where relevant, the decision must also have regard to sites of archaeological or architectural importance, recorded monuments, or protected structures, any special amenity area order, any designated site considered sensitive (for example a Special Protection Area (SPA), a Special Area of Conservation (SAC) or a Natural Heritage Area (NHA)) relating to the area.

If the application relates to development which requires an Integrated Pollution Control licence (IPC), an Industrial Emissions License (IE) or a waste licence, a planning authority must note that environmental matters such as the control of emissions arising from the activity is a function of the Environmental Protection Agency (EPA). A range a statutory and non-governmental bodies must be notified where applications might impact on different areas of service provision or have implications for areas of natural heritage -this includes amongst others Uisce Éireann, Transport Infrastructure Ireland, the Heritage Council, An Taisce, the National Parks and Wildlife Service etc. For example, where it appears that a proposed development might impact on the provision of public water services, the application must be referred to Uisce Éireann / Irish Water.

The chief executive must consider any information relating to the application furnished by the applicant and any written submissions or observations concerning the proposed development made by persons or bodies other than the applicant. In the case of a planning application for an activity that requires an IPC licence or IE license, the Environmental Protection Agency is the appropriate consenting authority for the issuing of such a license.

6.3.3 Pre-Planning Consultations

The 2000 Act specifically provided in law for the first time for pre-planning consultations. It provides a set of rules to govern, in the interests of openness, transparency and accountability, how such consultations are to be recorded and put in the public domain.

The local authority must advise applicants of the procedures involved in considering a planning application, highlighting the relevant objectives of the development plan which may have a bearing on the decision of the local authority. Each local authority must keep a record in writing of any consultations.

6.3.4 The Planning Application Process

The detailed rules concerning the making of an application for planning permission are uniform throughout the State, having been established by the Minister through Permission Regulations. These prescribe the documents to be submitted for planning applications, including plans, drawings, maps and public notices. Certain applications must be accompanied by an Environmental Impact Assessment Report and or a Habitats

Directive Screening Statement, more commonly known as Appropriate Assessment. Other matters prescribed include the inspection of documents by members of the public, the seeking of further information by the local authority and the notification of decisions to interested parties.

All planning applications must be accompanied by a public notice advertising the applicant's intention to apply for the permission. Notice must be given in a newspaper circulating in the district of the proposed development and by the erection of a notice on the site of the development. A notice erected on the site of the development must be capable of being clearly seen and read from the public road. All notices must state the nature and extent of the development, the name of the applicant and, in the case of a notice published in a newspaper, the location of the land or the address of the structure to which the application relates. If an application relates to a protected structure, the public notices must contain a statement to the effect 'that this building is a protected structure'.

The local authority must make a decision on a planning application within eight weeks from date of receipt of the application, or within four weeks from the date of receipt of further information requested by the local authority. If a decision is not made within these deadlines, permission is granted by default unless a time extension has been granted. The 2024 Act maintains the eight week deadline for most planning applications, but provided for an additional four weeks for applications requiring an environmental assessment.

The minimum period for determination of an application is five weeks from receipt of the planning application. Submissions or observations on the application must be received by the planning authority within the period of five weeks beginning on the date the application is received. The appropriate fee must be submitted with each observation or objection and only those who have made a valid submission within the five-week period are legally entitled to make a subsequent third party appeal of the decision.

The permission granted may be subject to any number of conditions. The range of conditions that can be attached is set out in legislation.

Appendix I charts the planning application process.

The normal duration of a planning permission is 5 years, but conditions can be attached to the permission specifying the duration of the permission. Applicants can apply for an extension of duration of that permission. There is provision to further extend the permission in cases of larger developments.

6.3.5 Exempted Development

Developments that are considered 'exempted development' mean that planning permission is *not* required for such developments. These are set out in legislation and regulations. The issue of whether a development is exempt or not can arise in the course of objections and disputes, including between neighbours. Examples of exempted developments include:

- Porches of a limited size
- Extensions to the rear of a dwelling or house subject to restrictions of a limited size.
- Walls up to a specified height around a dwelling or house.
- Certain agricultural buildings and structures subject to restrictions relating to size, etc.
- Change of use from a take-away, pub, funeral home, restaurant or amusement arcade to a shop – but not from a shop to any of the others.
- The use of up to four bedrooms in a house for Bed and Breakfast purposes.
- Bring facilities (bottle banks).

As a general principle however, exempted developments are only exempted if they do not infringe any other planning guidelines or requirements that might apply – for example they do not contravene any planning conditions that apply to a site, they do not create a traffic hazard, or obstruct a public right of way or contravene a development plan, etc.

6.3.6 Planning Fees

Fees (set by national government) must be paid to those applying for planning permission. Such fees are payable in respect of all planning applications except those of a community nature (for example churches, schools, sports facilities and voluntary housing developments). Standard fees have also been set for appeals to An Coimisiún Pleanála. The Planning and Development Regulations, 2001 made the following provisions for fees.

- Applications for permission for the provision of a dwelling are at the rate of €65.
- Applications for permission for house extensions, provision of septic tanks etc. are €34.
- Agricultural developments are charged at a rate of €1.00 a sq. metre in excess of 200 sq. metres - with a minimum charge of €80.
- Commercial applications for permission - €3.60 a sq. metre - minimum €80.00 fee.
- Outline applications are at three-quarters the rate of an application for full permission.
- Applications for Permission Consequent on the Grant of Outline Permission where a fee has been paid, in respect of the outline application, are charged at one-quarter of the full application fee.

Applications for permission for retention of unauthorised development are liable for 3 times the standard planning application fee. Maximum fees are also provided for. The maximum fee for full application is €38,000, for outline application is €28,500, and for retention is €125,000.

Fees for appeals for non-commercial development are generally €220, but varying rates apply depending on whether or not the development was commercial.

A review of planning fees was initiated by the Department in 2007 with a view to establishing, for a number of classes of application, if a shortfall existed between the fees

level and the administration costs of processing an application. Arising from this review it was proposed to increase planning fees with the amount to be determined following a consultation process. However this recommendation has not been implemented.

6.3.7 Development Contribution Scheme

Where a proposed development is facilitated by publicly provided infrastructure, conditions can be attached to the grant of permission requiring the payment of development contributions in respect of such public infrastructure (contributions may be payable for roads, car parking, public lighting, recreation and amenity facilities, etc.). The 2010 Act gives local authorities some flexibility on the use of development levies, as appropriate, on a range of different infrastructure and works such as schools and school sites, broadband provision and flood relief works.

From 2014 onwards, local authorities, when granting permission, no longer include a portion of development contributions in respect of water services infrastructure in any development contribution applied. A charge in respect of water services infrastructure provision in respect of developments granted planning permission from 2014 is instead levied by Uisce Éireann.

The 2000 Act tried to ensure that the basis for the determination of such contributions is clearly set out. Local authorities are obliged to prepare a development contribution scheme. Draft schemes must be publicly advertised, and the adoption of a scheme is a *reserved function*. The adoption of the initial schemes caused considerable debate as to their impact on the cost of housing and other development. You should check to ascertain how much income is generated in development levies in your local authority.

6.3.8 Compensation

One of the most important features of the Planning Acts is provision for the payment of compensation by local authorities in cases where the value of interest in land is reduced or a person suffers actual damage arising from the implementation of the planning code.

The law on planning compensation is contained in Part 15 of the 2024 Act (and previously Part 12 of the 2000 Act). Compensation may be payable due to:

- the making of a planning decision
- the removal or alteration of a structure
- the discontinuance of use
- designation of area of special planning control scheme
- laying of cables, wires and pipelines
- the creation of public rights of way
- entry onto land, etc.

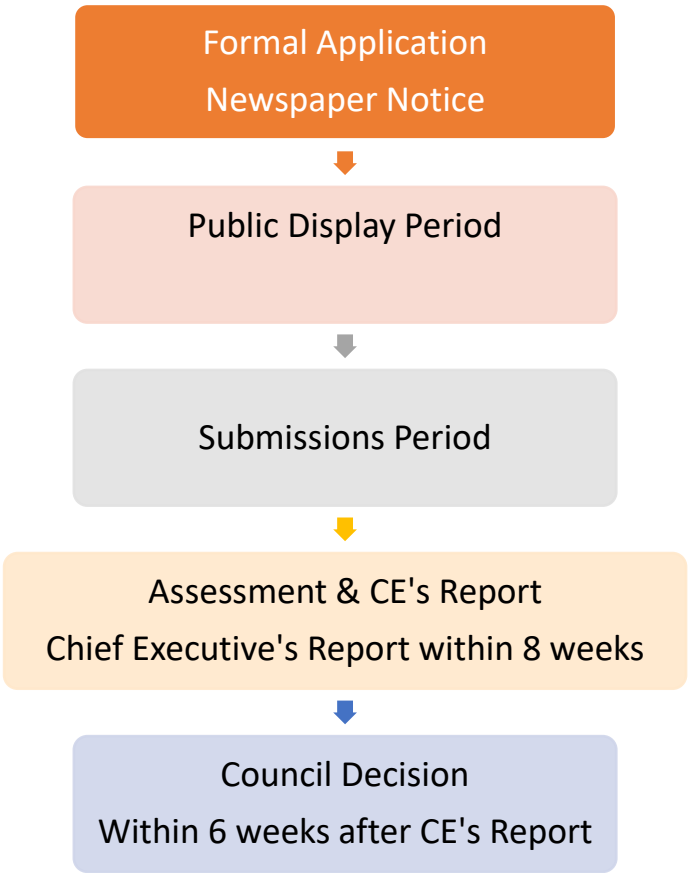
Compensation may be payable where permission to develop land has been revoked or codified by a decision of the elected members. However, the right to compensation is heavily restricted by the following exemptions and rules governing compensation in

planning cases. Compensation is *not* payable in respect of the refusal of permission for specific types of developments identified in legislation, or if the reasons for a refusal or a condition for the grant of permission include a reason / condition set out in a Schedule to the legislation. As an example, compensation is not paid where a refusal of permission for a proposed development is based on any change of the zoning of land that arises from the making of a new development plan.

6.3.9 Development by a Local Authority

Before 1993, development by a local authority within its own area was classified as exempted development. Arising out of a Planning Act in 1993, obligatory procedures were put in place for certain local authority development. The legal basis is now found in Part 4, Chapter 6 of the 2024 Act (previously Section 179 of the 2000 Act) and the procedures are set out in Regulations. These involve the giving of public notice, notifying certain bodies, making details available for inspection, facilitating submissions and the preparation of a subsequent report thereon for consideration by members of the council. The council can then decide to pass a resolution directing that the works not go ahead.

The process is outlined below:



In addition to certain types of development, as specified by the Minister, the Regulations require the public consultation process to be undertaken in respect of all works with expenditure in excess of €126,000. Where a development is proposed to be carried out by a local authority within its functional area and is of a specific class (such as a waste-water

treatment plant or landfill development), the local authority must prepare an Environmental Impact Assessment Report (EIAR). A proposed development in respect of which an EIAR has been prepared cannot be carried out unless it obtains the approval of An Coimisiún Pleanála.

Where certain development of a prescribed nature is proposed to be carried out wholly or partly on the foreshore by a local authority, the local authority must apply to An Coimisiún Pleanála for approval of the proposed development.

6.4 PLANNING APPEALS AND AN COIMISIÚN PLEANÁLA

6.4.1 Role and Functions

Originally under the 1963 Act, all appeals against planning decisions of local authorities were made to the Minister for the Environment. The 1976 Act amended this by providing for the establishment of an independent appeals body, An Bord Pleanála (known since 2024 as An Coimisiún Pleanála), to adjudicate on planning appeals, references etc. While the Minister may publish general directives as to policy concerning planning applications and appeals, he/she has no power to issue a directive in any individual case.

An Coimisiún Pleanála, the Planning Appeals Commission, is required under the 2024 Act to make decisions on appeals on standard planning applications within 18 weeks, and is given up to 48 weeks for decisions on larger-scale infrastructure projects and strategic development.. In certain cases, where this is not possible, the Commission must notify the parties concerned and state the new period within which a decision will be made. The Commission also has functions relating to the confirmation of compulsory purchase orders and in relation to the approval of certain local authority development on the foreshore. From 2006 onwards, the Commission also became responsible for planning applications for larger infrastructure projects classified as 'strategic infrastructure' (see below).

6.4.2 The Planning Appeal Process

An applicant aggrieved by the decision of a local authority to refuse permission or to grant permission subject to conditions may appeal the refusal or the conditions attached to the permission to An Coimisiún Pleanála. A third party aggrieved by a decision to grant permission has a similar right to appeal the decision of the local authority. Only third parties who have previously validly made a submission or observation on the planning application can proceed with an appeal.

A planning appeal must outline the grounds of appeal and the reasons, considerations and arguments on which they are based. Where an appeal is made, the local authority concerned shall, within a period of two weeks, beginning on the day on which a copy of the appeal is sent to them, submit to An Coimisiún Pleanála a copy of the planning application that is the subject of the appeal, and any drawings, maps, evidence, environmental impact statement, and any other written or further information received by the local authority, as well as any report prepared by the local authority in relation to the planning application,

and a copy of the decision of the local authority on the application and a copy of the notification of the decision given to the applicant.

The Commission has the discretion to decide to hold an oral hearing on an appeal. They may also dismiss appeals if they consider them to be vexatious, frivolous or without substance or foundation, or if made with the sole intention of delaying the development or made with the intention of securing the payment of money, or other inducement by any person.

The Commission, in determining an appeal, can decide to grant permission even if the proposed development materially contravenes the development plan in the local authority area. However, where a local authority has decided to refuse permission on the grounds that a proposed development materially contravenes the development plan, the Commission may only grant permission where it considers that:

- the proposed development is of strategic or national importance
- there are conflicting objectives in the development plan or the objectives are not clearly stated
- permission should be granted based on Regional Spatial and Economic Strategies for the area, or Ministerial guidelines or policy directives, the statutory obligations of any local authority in the area, and any relevant policy of the government
- permission should be granted based on the pattern of development, and permissions granted, in the area since the making of the development plan.

Decisions of An Coimisiún Pleanála can be appealed on a point of law to the High Court.

The structure and role of An Coimisiún Pleanála was revised as part of the Planning and Development Bill 2024 (Part 17). This followed a series of reviews into the operation of the planning appeals system, and concerns over delays in the planning process and planning appeals, given increased construction activity. The restructuring involved a clearer separation of decision-making on planning issues by Planning Commissioners and the Governing Board of the Commission, as well as reform of the judicial review process. As part of these changes, the name of the organisation was changed from An Bord Pleanála to An Coimisiún Pleanála.

6.5 OFFICE OF THE PLANNING REGULATOR

The Office of the Planning Regulator (OPR) was established in 2019 to oversee the operation and implementation of planning policy by local authorities and An Coimisiún Pleanála. The functions of the OPR are provided for under Part 18 of the 2024 Act.

The remit of the OPR includes carrying out formal evaluations of development plans and local area plans adopted by local authorities, along with variations made to plans, and making observations and recommendations to local authorities based on these reviews. In carrying out its work, the OPR is required to have regard to a range of different considerations, including national policies and guidelines, the public interest, the National Planning Framework, and relevant national and EU legislation. The OPR may also issue a notice to the Minister recommending that he / she direct a local authority on a matter of concern that has been identified in a local authority development plan or local area plan.

The Planning Regulator may also review the systems and procedures of a local authority in carrying out their planning functions. As part of its role, the OPR also runs briefings and training programmes on the planning system for both the elected members and staff of local authorities.

6.6 PLANNING ENFORCEMENT

6.6.1 Unauthorised Development/Enforcements

Under section 2 of the 2024 Act, unauthorised development refers to the carrying out of any "unauthorised works (including the construction, erection or assembly of an unauthorised structure) or an unauthorised use". Planning authorities are empowered to use enforcement procedures in situations where unauthorised development has taken place. The procedures involved in planning enforcement are set out in Part 11 of the 2024 Act.

6.6.2 Enforcement Procedures

Warning Letter

Where an unauthorised development may have been, is being, or may be carried out, the local authority must issue what is known as a 'warning letter' to the owner, the occupier or any other person carrying out the development. This warning letter must be issued not later than six weeks after any complaint made about the development to the local authority, and the complainant is entitled to a copy if he/she requires one. This statutory requirement has had a major impact on local authorities and has led to the setting up of special enforcement units. The warning letter must identify the land in question and allow for submissions in writing within a four-week period.

Having issued a warning letter, a local authority has a duty to ensure that a decision on whether to subsequently issue an enforcement notice is taken within 12 weeks. The

decision made by the local authority including the reasons for it must be entered into the planning register.

Regardless of the decision made as to whether or not to serve an enforcement notice, the authority must either way inform the person who made the original complaint. In urgent cases, the local authority can immediately issue an enforcement notice or make an application to the Courts (see below).

Enforcement Notice

An 'enforcement notice' is a notice to 'force' a person to cease or remove an unauthorised development, or to comply with the terms of a planning permission. The legislation provides for making an application to the High Court and Circuit Court for an injunction in particular cases.

The Court may order the carrying out of any works, including the restoration, reconstruction, removal, demolition or alteration of any structure or other feature. In any proceedings for an offence, the onus of proving the existence of any permission granted is on the defendant. Whereas for other processes in planning enforcement and dealing with unauthorised development involve the planning authority taking action, in the case of injunctions application can be made to the Courts by anybody.

Proceedings for offences must be taken within seven years of the commission of the offence or from the expiry of the relevant planning permission.

The 2010 Act strengthened the powers of a local authority to refuse planning permission to applicants who have been convicted of serious breaches of planning legislation. This provision allowed a local authority to refuse permission where the applicant has carried out a substantial unauthorised development.

6.7 HOUSING AND PLANNING

6.7.1 Background

Part 7 of the 2024 Act (originally Part V of the 2000 Act) provides that *housing strategies* have to be prepared by planning authorities for inclusion as part of the development plan, in order to ensure that adequate land is zoned for housing and sufficient and affordable housing is provided in their areas. In drawing up the housing strategy, the local authority had to identify the total demand for housing in its area, including social housing and housing for people on different levels of income. In this respect, each planning authority had to have regard to the most recent housing assessment made under Section 9 of the Housing Act, 1988, that related to the area of the development plan.

The strategy had to also ensure that there is an adequate mix of house types to cater for the demand, whether family, one-person households or others, and also had to take account of the need to counter social segregation.

6.7.2 Housing Strategy

A housing strategy has to take into account the existing and likely future need for housing of the following special categories of person: the homeless, Travellers, those living in unfit accommodation, those in overcrowded accommodation, young people needing institutional care, those with medical needs, the elderly, disabled, and those unable to meet the cost of their accommodation. The housing strategy must also take into account the existing and likely future need for what is described as 'affordable housing'.

The local authority must ensure that sufficient suitable land is zoned for residential use to meet the requirements of the housing strategy, and to ensure that a scarcity of land does not occur during the period of the development plan.

6.7.3 Housing Developments - Part V

In principle, planning applications for housing on land zoned residential or mixed use should be accompanied with proposals as to how the applicant proposes to comply with Part V, which requires a dedicated proportion of new housing developments to be devoted to social and affordable housing. Certain developments are exempt from Part V, including housing provided by an 'Approved Housing Body' / voluntary housing association, the conversion of an existing building or the reconstruction of a building to create one or more dwellings (where 50% of the external fabric is retained), or the carrying out of works to an existing house.

In these cases, there is no requirement for an exemption certificate. However some other developments which are also exempt from Part V (such as developments of 4 houses or less or housing development on land of 0.1 hectares or less) do require an exemption certificate.

Part V was initially provided for in Section 96 of the Planning and Development Act, 2000. Amendments through the Urban Regeneration Act, 2015 provided that any planning application, to which Section 96 of the Planning Act applies (i.e. developments of 5 residential units or more) require a Part V agreement. Further changes were provided for under the Affordable Housing Act, 2021 which increased the Part V requirement from 10% to 20% for any land purchased for development from 2021.

Therefore, before lodging a planning application, applicants for developments of 10 units and more must propose and agree in principle with the local authority how they intend to discharge their Part V obligation. Options for complying with Part V of the Planning and Development Act may include:

- The transfer of land/ units in the development. Where land is proposed it must be capable of delivering the appropriate percentage of housing.
- Delivery of units off site. While the legislation also allows for the option of leasing units in the development or the leasing of new units in another development, leasing is only considered where capital funding is not available.

6.8 STRATEGIC DEVELOPMENT

6.8.1 Introduction

Strategic infrastructure development is a reference to development that can be considered as being of strategic economic and social importance to the state or to a region. It includes development that makes a significant contribution to any of the objectives of the National Planning Framework (NPF) or regional spatial economic strategies for an area, and that would have a significant effect on the area of one or more planning authorities.

Specific provision was made in the 2000 Act for Strategic Development Zones (SDZs). A specific law was enacted, the Planning and Development (Strategic Infrastructure) Act, 2006, to provide for developments of strategic importance to the state.

6.8.2 Strategic Development Zones (SDZs) and Urban Development Zones (UDZs)

The 2000 Act originally introduced the concept of SDZs, now provided for under Part 21 of the 2024 Act. Where specified development is of economic or social importance to the **s**tate, the Government may by order designate one or more sites for the establishment of an SDZ to facilitate such development. The types of development for which a zone may be established include industrial, residential or commercial development that is considered of national importance.

An SDZ Order shall:

- specify the development agency or agencies which must prepare a draft planning scheme for this purpose
- specify the type or types of development for the SDZ
- state the reasons for specifying the development.

Where a site is designated as an SDZ, the development agency must, not later than two years after the making of an order, prepare a draft planning scheme in respect of the site and submit it to the relevant planning authority. The draft scheme must be accompanied by an Environmental Report, the main output of the Strategic Environmental Assessment Process (SEA) and a Habitats Directive Screening Statement, also referred to as an Appropriate Assessment Screening. A strategic Flood Risk Assessment is usually also prepared. These reports and assessments are prepared in tandem with the preparation of the draft planning scheme.

A draft planning scheme for an SDZ must consist of a written statement and a plan indicating the manner in which it is intended that the site is to be developed and according to the 2024 Act (section 592) should include:

"(a) the type or types of development which may be permitted…
(b) the extent of any such proposed development
(c) proposals in relation to the overall design of the proposed development…
(d) proposals relating to transportation, roads, and parking

(e) proposals relating to the provision of services on the site…
(f) proposals relating to minimising any adverse effects on the environment, and on the amenities of the area
(g) where the scheme provides for residential development, proposals relating to the provision of amenities, facilities and services for the community, including schools, crèches and other education and childcare services."

The draft planning scheme must be submitted to the local authority. The local authority must also place a notice of the preparation of the draft planning scheme in one or more newspapers circulating in the area. The scheme must be available for inspection for a minimum of 6 weeks. Submissions or observations may be made in writing within the period for inspection stated in the notice. Not more than 12 weeks after the giving of notice of the preparation of a draft planning scheme, the chief executive must prepare a report for the elected members on any submissions or observations received. The draft planning scheme and report are considered by the elected members. The scheme shall be deemed to be made 6 weeks from the date of submission of the scheme and the chief executive's report to the members of the authority unless they, by resolution, decide to make the scheme subject to variations or modifications or they resolve to refuse to make the scheme. The decision of the local authority may be appealed to An Coimisiún Pleanála within 4 weeks by anyone who made submissions or observations on the draft scheme or by the development agency involved in the preparation of the draft scheme. If there is no appeal, the scheme comes into force 4 weeks from the decision by the members. The local authority can also make an application to An Coimisiún Pleanála requesting amendments to an approved SDZ planning scheme.

Where an application is made to a planning authority for a development in a strategic development zone, a local authority *must* grant permission where it is satisfied that the development would be consistent with any planning scheme in force for the land in question. Development which would not be consistent with such a planning scheme should be refused. There is no appeal to An Coimisiún Pleanála against a decision of a local authority in respect of a strategic development zone.

Land can be acquired by a local authority or agreements can be made by a development agency to facilitate the establishment of a strategic development zone. A local authority may use any powers open to under law to acquire land including compulsory purchase powers in order to facilitate the provision of sites.

A number of SDZs have been designated by the Government. Several schemes have been approved, most of which were originally located in Dublin or the greater Dublin area. These included Adamstown and Clonburris, Grangegorman, the North Lotts, Grand Canal Dock, Hansfield in Fingal, and Clonmagadden Valley outside Navan, Co. Meath. In County Cork, a new rail-based satellite town received approval in 2016. In Waterford the North Quays Planning Scheme was adopted in 2018, while Mayo County Council approved a planning scheme for lands at Ireland West Airport in Knock in 2019.

The 2024 Act also provides for the establishment of 'Urban Development Zones' to allow for fast tracked planning permissions in areas which have been identified where

development is of significant economic, social or environmental benefit to the state, and where a development scheme has been adopted – these provisions are similar to those on strategic development zones.

6.8.3 Strategic Infrastructure

The development of strategic infrastructure is governed by the Planning and Development (Strategic Infrastructure) Act, 2006. The preamble to this Act states that it is:

> "An Act to provide, in the interests of the common good, for the making directly to an Bord Pleanála of applications for planning permission in respect of certain proposed developments of strategic importance to the State, to make provisions for the expeditious determination of such applications, applications for certain other types of consent or approval and applications for planning permissions generally".

The type of strategic infrastructure covered by this Act is specified as energy, transport and environmental and healthcare infrastructure, including wind farms, airports, transport links, healthcare facilities, water and waste facilities, including thermal treatment.

Persons or bodies seeking permission for strategic infrastructure will initially apply to An Coimisiún Pleanála for a decision on whether the particular project:

- Is of strategic economic or social importance to the state or the region.
- Will contribute to the fulfilment of the objectives of the National Planning Framework.
- Would have a significant impact on the area of more than one local authority.

Where the Commission decides that the project in question *is* of strategic importance, an application with an environmental impact statement can be made directly to the Commission.

Local authorities can make observations on planning applications for strategic infrastructure, and An Coimisiún Pleanála is required to consider the local authority's development plan for the area, along with other considerations such as the public interest, national policies, national and regional spatial strategies and the environmental impact of the proposed development.

6.8.4 Strategic Housing Development

Planning applications for housing developments of more than 100 residential units and 200 plus student bed spaces were also for a time made directly to An Coimisiún Pleanála. Legislation that allowed for this type of application came into effect in 2017. This type of application was introduced as part of *Rebuilding Ireland* (see Lesson on Housing) and aimed to speed up the planning application process and accelerate delivery of larger housing and student accommodation proposals. By 2022 planning decisions on such developments had reverted to local authorities in the first instance as 'large-scale housing development'.

6.9 ENVIRONMENTAL IMPACT ASSESSMENT / STRATEGIC ENVIRONMENTAL ASSESSMENT

6.9.1 Environmental Impact Assessment (EIA)

Environmental Impact Assessment (EIA) is a process whereby the effects of a proposed development or project on the environment are anticipated and measured. Where the likely effects are considered unacceptable, different design measures or other conditions might be required to either reduce or avoid these anticipated effects.

The document from this process is called an Environmental Impact Assessment Report (EIAR). EU legislation, in particular the EIA Directive (Directive 2011/92/EU as amended by 2014/52/EU), requires that both public and private projects likely to have significant effects on the environment can only be given planning permission after an assessment of the likely significant environmental effects of the project is carried out – this is known as an Environmental Impact Assessment (EIA). Information must be supplied by the developer to allow the process to take place.

An environmental impact assessment must be carried out for all projects listed in Annex I and II of the EU Directive. These include projects such as crude oil refineries, power stations, hazardous waste installations, airports, as well as agricultural projects (such as pig units over a certain size), mineral extraction, energy projects, food, textile, leather, wood, paper and rubber industries and many other projects.

There is provision in the legislation to ask a developer to carry out an EIA even though it may not reach the threshold set out in the Regulations if it is considered that the proposal would have a significant effect on the environment. The Regulations set out the information to be included such as the likely effects, direct and indirect, on the environment with regard to human beings, flora, fauna, soil, water, air and climate, together with a description of the measures envisaged to remedy these effects. A summary of the information has to be prepared in non-technical language.

The Planning and Development Regulations set out detailed requirements in relation to EIAs in respect of planning applications and appeals. The Regulations also specify the procedure for EIAs in respect of relevant developments by or on behalf of local authorities. Obvious developments would include landfill sites and wastewater treatment plants. Certain developments cannot be undertaken without the certification of the EIAR by An Coimisiún Pleanála (see Lesson on Environmental Protection for more detail on EIA).

6.9.2 Strategic Environmental Assessment (SEA)

Strategic Environmental Assessment (SEA) is a process whereby environmental considerations are considered as part of the drafting and preparation of plans and programmes before their final adoption. The EIA as described above relates to the anticipated effects on the environment of a proposed *development or project.* The SEA

relates to *plans and programs*. The SEA process seeks to support environmental protection and sustainable development by ensuring that environmental considerations are taken into account during the preparation of specified statutory plans and programmes.

The EU SEA Directive (Directive 2001/42/EC) was adopted in 2001 and took effect in Member States in 2004. It requires that environmental matters be considered at an early stage in the decision making process. It is designed to complement the environmental impact assessment (EIA) process, with the latter focussed on projects. SEA, on the other hand is designed to assess plans, policies and programmes, *i.e.* higher-level strategy documents. The Directive applies across different sectors: land use and spatial planning, but also agriculture, forestry, fisheries, energy, industry, transport, waste management, water management, telecommunications, and tourism. The requirement to carry out SEA of plans/ programmes in these sectors arises where they "set the framework for future development consent of projects" which will require an EIA (Article 3(2) of SEA Directive). SEA may also be necessary where plans/ programmes are likely to have a significant effect on a site governed by the Habitats Directive. Appropriate assessment is the most important method of assessment where sites under the birds and habitats directive are concerned, as this is an ecological assessment of the effects of plans and projects on these sites.

Two sets of regulations were introduced in 2004 and latterly in 2011 to transpose the SEA Directive into Irish Law:

1. European Communities (Environmental Assessment of Certain Plans and Programmes) Regulations, 2004 (as amended by the European Communities (Environmental Assessment of Certain Plans and Programmes (Amendment) Regulations 2011) which cover the sectors listed in the SEA Directive with the exception of land use and spatial planning.
2. Planning and Development (Strategic Environmental Assessment) Regulations, 2004 (as amended by the Planning and Development (Strategic Environmental Assessment) (Amendment) Regulations 2011), which give effect to the requirements of the SEA Directive with respect to the preparation, review or variation of a development plan and the preparation of a local area plan, as well as the making of regional spatial strategies and the making of a Strategic Development Zone (SDZ) planning scheme.

6.10 USE AND ACQUISITION OF LAND

The 1963 Planning Act envisaged that the planning authority would act as a "development corporation." Wide-ranging powers were given to provide land and facilities for the necessary infrastructural, social and cultural development in line with the proper planning and development of their areas. These powers were not fully realised due mainly to a lack of resources and the doctrine of *ultra vires*, which stifled initiative. However, a *general competence power* was bestowed on local authorities in the Local Government Act, 1991, and new opportunities have emerged for local authorities.

On the basis of these powers, local authorities have long played a role in supporting development in their areas, through for example the provision of sites for commercial use, urban and village renewal and regeneration programmes, investing in key transport or environmental infrastructure, and a wide range of initiatives in areas such as tourism, heritage and employment. It was based on this traditional role that local government was given a more formal responsibility for economic development in 2014 (see Lesson on Economic Development and Local Development).

To ensure that local authorities' powers in relation to the acquisition, use and disposal of land are fully clarified, both the 2024 Act and the 2000 Act restated, modified and simplified the process. The language used in the Act is deliberately wide ranging, allowing planning authorities maximum flexibility to respond to community issues. The 2000 Act also transferred the power to make compulsory purchase orders to An Coimisiún Pleanála.

6.10.1 Land Acquisition Powers of a Local Authority

Where a local authority has acquired land for any of its purposes and is satisfied that the land should be made available for any purpose related to the local authority's functions, then the local authority may appropriate the land for such purposes. The legislation provides that a planning authority may develop or secure land for a number of different purposes, including:

- widening, opening, enlarging or otherwise improving roads
- develop any land in the vicinity of any road or public transport facility
- provide roads and infrastructure facilitating public transport
- provide land for development
- development and renewal of areas in need of regeneration
- preserve any protected structure or other structure, any architectural conservation area or natural physical feature, any trees or woodlands or any site of archaeological, geological, historical, scientific or ecological interest
- promoting industrial, business and retail development
- tourism promotion
- leisure and educational facilities

The 2024 Bill *(*section 409) states that a local authority may

"(i) acquire land, permanently or temporarily, by agreement *or compulsorily* [compulsory acquisition of land is achieved through a "Compulsory Purchase Order" or CPO]
(ii) Acquire, permanently or temporarily, by agreement or compulsorily, any easement, way-leave, water-right or other right over or in respect of any land or water…
(iii) Restrict or otherwise interfere with, permanently or temporarily, by agreement or compulsorily, any easement, way-leave, water-right or other right over or in respect of any land or water or any substratum of land".

6.10.2 Compulsory Purchase Orders (CPOs)

The compulsory acquisition of land is a power that must be used with great care. There is, after all, a constitutional right to own property. Compulsory acquisition is a very strong power that few institutions of the state enjoy. To take a person's property is a serious action, and the rights of the landowner must be protected to ensure that the land is actually required in the interest of the common good, to ensure that the landowner is adequately compensated, and to ensure that the correct procedures are followed.

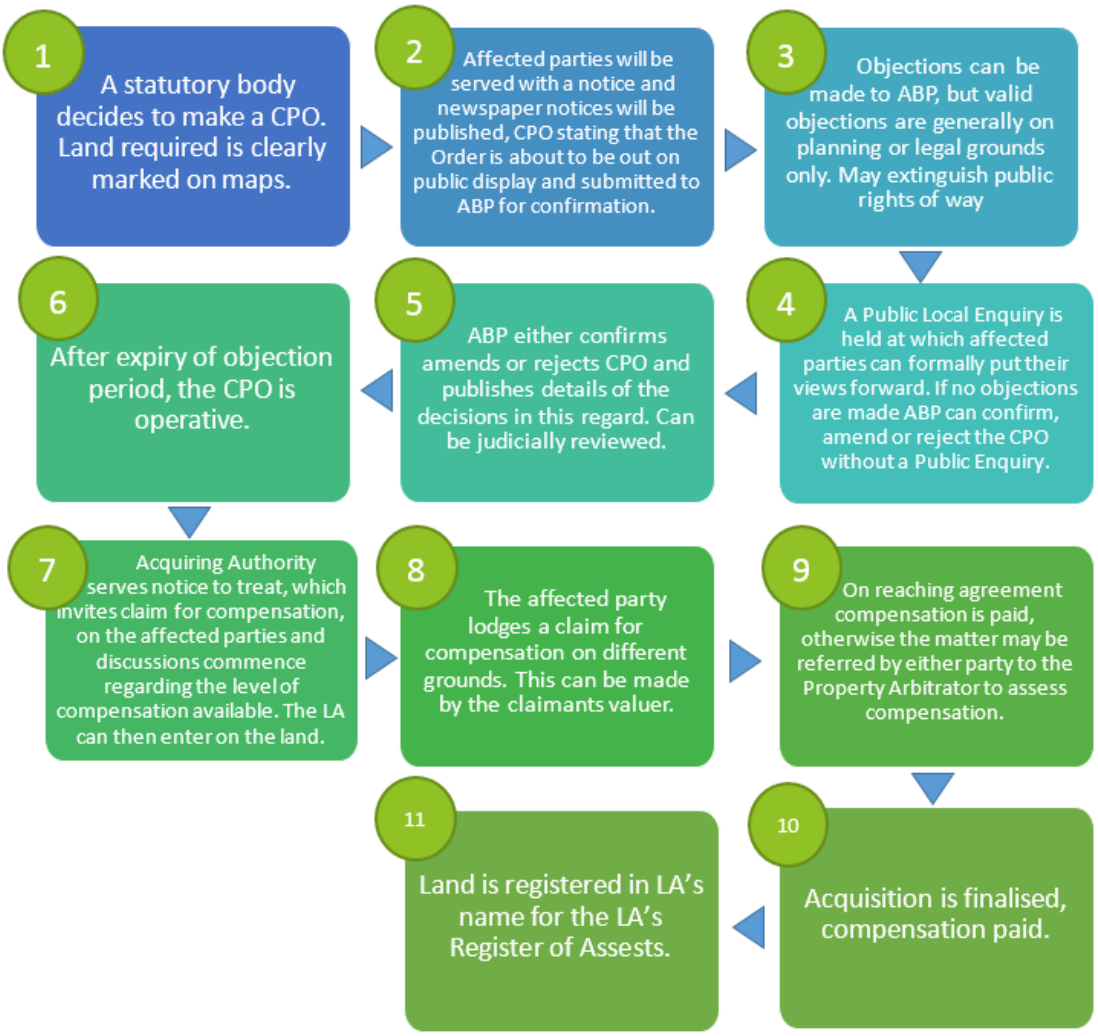
The local authority must give public notice of the intention to compulsorily acquire the land and the landowner must be notified. Provision is made for objections to be lodged in respect of the proposed acquisition and an oral hearing must be held where valid objections have been made. A report on the oral hearing is submitted to An Coimisiún Pleanála, which is the statutory authority for the confirmation of compulsory purchase orders.

Where a CPO is made for land by a local authority, and no objections are received by An Coimisiún Pleanála or the local authority within the period provided for making objections (or if objections are subsequently withdrawn before An Coimisiún Pleanála makes its decision), or if the Commission is of opinion that any objection received relates to matters which can be dealt with by a property arbitrator, the Commission so informs the local authority. Either way, An Coimisiún Pleanála can decide to either confirm, amend or reject the CPO. The decision of An Coimisiún Pleanála may be appealed to the High Court. Where no appeal is made to the High Court, the CPO becomes effective 21 days after publication of the order. A *notice to treat* is then served on the persons affected, which requires them to state, within one month, their interest in the land and to give details of the compensation sought.

Notice of entry is then served on the persons affected and the local authority takes possession of the land after the expiration of 14 days from the service of the notice of entry. The CPO lapses if the local authority fails to take possession of the land within a period of three years.

The persons affected by the CPO are entitled to compensation which, in default of agreement, is determined by arbitration.

The diagram on the next page illustrates the CPO process.



6.11 BUILDING CONTROL

Local authorities act as Building Control Authorities for their area. The purpose of Building Control is to promote good practice through specified standards that apply to the design and construction of buildings. The building control system is based on a parent act, the Building Control Act 1990 (as amended) and the subsequent adoption of a set of Building Regulations and Building Control Regulations.

The Building Control Act, 1990, provides for the following:

- The making of Building Regulations – dealing with issues such as building standards, workmanship, conservation of fuel and energy and access for people with disabilities.
- The making of Building Control Regulations – dealing with Commencement Notices, Fire Safety Certificates.
- Provides for powers of enforcement and inspection – the building control authority is authorised to carry out checks in relation to design and during construction to promote the observance of the Building Regulations. The building control authority

can also serve enforcement notices in cases of non-compliance and an application for an injunction can be made to the courts in certain cases, if necessary.

The Building Control Act, 2007 strengthened the enforcement powers of building control authorities, for example by widening the right of building control authorities to seek an order from the High Court or the Circuit Court to stop work on buildings where there is a risk to health or safety of persons or to stop the construction or use of new buildings, and also increased maximum penalties for breaches of the regulations. The 2007 Act also introduced a Disability Access Certificate and revised procedures for issuing Fire Safety Certificates for buildings.

Amongst other things, the Building Regulations provide for the health, safety and welfare of people using buildings, fire safety, conservation of fuel and energy, and access for people with disabilities.

Under the Building Control Regulations, a procedure is in place to ensure compliance with the standards set out. This includes the nomination of a Builder to carry out works in accordance with the Regulations, the nomination of an 'Assigned Certifier' to inspect works to ensure compliance with the Regulations, and the submission of additional documentation such as plans, specifications with a Commencement Notice at commencement stage, and a Certificate of Compliance following completion of works.

A Commencement Notice is a notification to a building control authority that work is to be carried out to which the Regulations apply. The notice must be lodged with the relevant building control authority in which the work is taking place before the commencement of works. Building control authorities review the proposed work and can visit construction sites to inspect work underway.

A Certificate of Compliance on Completion is a document submitted to the building control authority following the completion of the works, which must be signed by both the assigned certifier and the builder. The Certificate confirms that the building or works have been carried out in accordance with the Regulations. The owner of a building and builder carrying out work are responsible for compliance with the Regulations, which is checked by an 'assigned certifier'. The assigned certifier must be an architect, quantity surveyor, chartered surveyor, or engineer recognised by their relevant professional society.

A Building Control Management System (BCMS) is an online system which allows building owners to nominate an assigned certifier and builder for the development works and to upload required documentation.

6.12 MISCELLANEOUS

6.12.1 Planning Register

In the interest of openness and accountability and to allow for public information and participation in the planning process, each local authority must keep an up-to-date

planning register. The register must be accompanied with appropriate maps showing the location of all planning applications received and be available in all planning offices for public inspection.

6.12.2 Architectural Heritage

Local authorities have a key role to play in ensuring that the quality of the built environment is of a high standard and that buildings of an architectural, historic or cultural significance are preserved in the interests of protecting that quality environment. Part 10 of the 2024 Act deals with architectural heritage.

All planning authorities must include a record of protected structures (RPS) as part of the development plan for their area. The local authority must inform the owners and occupiers of the change of status of their building and afford them the opportunity to object in writing to the inclusion of the structure in the record of protected structures. A local authority, or An Coimisiún Pleanála on appeal, cannot grant permission for the demolition of a protected structure except in exceptional circumstances.

Any works which would affect the character of a protected structure or any element of that structure will require planning permission, even where those works would normally be exempt. This requirement covers work to the interior and the exterior of a protected structure and to any land in its curtilage. The Act places an obligation on owners/occupiers of protected structures to take all reasonable steps to ensure that the structure is not endangered.

Planning legislation also provides for architectural conservation areas (ACAs), originally introduced under the 2000 Act. Section 331 of the 2024 Act states that:

> "… where a planning authority considers that a place in its functional area … is of special architectural, historical, archaeological, artistic, cultural, scientific, social or technical interest or value, or contributes to the appreciation of protected structures, and it is necessary to do so for the preservation of the character of the place, it shall … include an objective in the development plan to preserve the character of the place."

6.12.3 Declaration of Interest/ Lobbying

Planning legislation also provides that members and officials of An Coimisiún Pleanála and members and certain officials of local authorities are required to make a declaration of interest, including any lands owned by them, or any business of developing land in which they are engaged (e.g. as an auctioneer). These declarations are kept in a Register and are available for inspection by members of the public.

Further rules in relation to lobbying were introduced by the Regulation of Lobbying Act 2015. The regulation of lobbying impacts on the planning system and other policy and service areas of local authorities.

This Act establishes a register of lobbying to place information on the identity of those communicating on specific policy, legislative matters or prospective decisions with designated public officials or office holders in the public domain. Specific guidance on lobbying on planning issues (such as planning permissions, zoning and planning enforcement) has been prepared by the Standards in Public Office Commission (see also the Lesson on Human Resources on the ethics framework).

6.12.4 Completion of Estates: Taking-in-Charge

Where a development that includes the construction of two or more houses with roads, open spaces, car parks, sewers, water-mains or drains, has been completed to the satisfaction of the local authority in accordance with the permission granted, the authority must, where requested by the developer or by the residents (or more precisely, the majority of the owners of the houses involved), as soon as may be, initiate the procedures under Section 11 of the Roads Act, 1993 for the taking of the roads and services in charge.

6.13 CONCLUSION

Planning is one of the more controversial functions of local authorities. It involves trying to achieve a balance between the rights of the individual and the rights of the community and deciding on how best the common good is served. It is important that students remember that planning relates to much more than the issue of development management and processing of planning permissions – forward planning and sustainable development concepts are of prime importance in the development of communities for the future.

KEY CONCEPTS

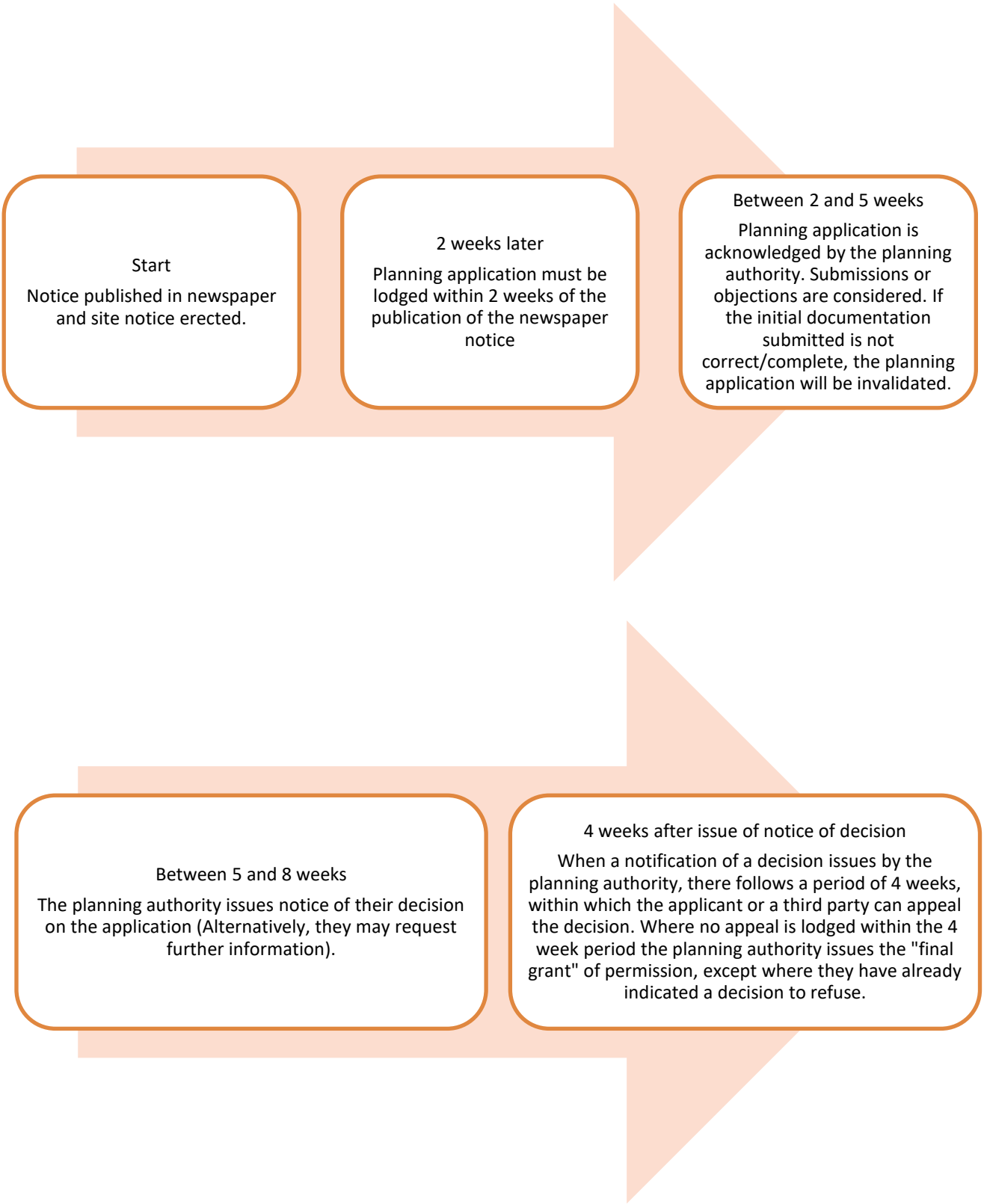
- Planning Authority
- An Coimisiún Pleanála / An Bord Pleanála
- Office of the Planning Regulator (OPR)
- Forward Planning
- Development Management
- Development Plan
- Local Area Plan
- Core Strategy
- Zoning
- National Planning Framework
- Regional Spatial and Economic Strategy (RSES)
- Pre-Planning Consultation
- Planning Register
- Public Notice
- Appeals
- Declaration of Interest
- Material Contravention / Variation of Development Plan
- Exempted Development
- Unauthorised Development
- Enforcement Notice
- Warning Letter
- Environmental Impact Assessment (EIA)
- Strategic Environmental Assessment (SEA)
- Oral Hearings
- Compensation
- Development Contribution Scheme
- Record of Protected Structures
- Special Protection Area (SPA)
- Special Area of Conservation (SAC)
- Natural Heritage Area (NHA)
- Architectural Conservation Area (ACA)
- Housing Strategy
- Strategic Development Zone (SDZ)
- Strategic Housing Development
- Compulsory Purchase Order (CPO)
- Building Control
- Assigned Certifier
- Commencement Notice
- Certificate of Compliance on Completion
- Building Control Management System

STUDENT ACTIVITIES

1. Examine each of the following in your local planning office – the development plan and zoning map, the planning register, and a planning application which was granted by the local authority but was referred on appeal to An Coimisiún Pleanála.

2. Consult the 'core strategy' within the development plan. To what extent do you think it reflects on the future needs of the county / city?

3. Check what conditions are attached to the grant of permission. On what basis are development contributions required in your area?

4. Examine any EIA report or a planning application requiring an EIA to identify what environmental impacts are assessed.

APPENDIX 1: THE PLANNING PROCESS